

CV-23-001773 TRAVIS, TYEISHA vs COMMUNITY HOSPICE INC – Plaintiff's Motion for Final Approval of Class Settlement and Award of Attorneys' Fees, Costs and Service Awards – HEARING REQUIRED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Based on the moving papers and supporting evidence, the Court is inclined to GRANT the motion. It appears that proper notice to the settlement class has been given in compliance with the law and as required by the Court's order granting preliminary approval. Having considered the unopposed motion herein and the supporting declarations and evidence, the Court finds that the settlement was entered into good faith, is fair, reasonable and adequate, and satisfies the standards for final approval under California law. (Civil Code §1781; Code Civ. Proc. §382; Cal. Rules of Ct., rule 3.769.) Good cause appearing to the satisfaction of the Court, the proposed settlement and the associated fees and costs are approved as set forth in the motion and supporting papers, as follows: Fees and costs of Settlement Administrator: \$8,750 Payment to Class Representatives: \$20,000 PAGA allocation to LWDA (75%) and class members (25%): \$50,000 Class Counsel's attorney's fees: \$350,500 Class Counsel's costs: \$44,304.85 In accordance with the provisions of Code Civ. Proc. § 384, the Court sets a compliance hearing for April 15, 2027 at 8:30 a.m. in Department 23 to confirm full administration of the settlement. Class counsel shall submit a compliance report no later than 5 court days before the date of the hearing, which shall include the total amount that was actually paid to the class members pursuant to the subject settlement. At the time of the compliance hearing, the Court shall amend the judgment to direct that the sum of the unpaid funds, plus interest as required by the statute, be distributed as set forth in the Settlement Agreement. Class Counsel shall submit a revised proposed order incorporating the above revisions for the Court's signature.

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CV-23-001773 – TRAVIS, TYEISHA vs COMMUNITY HOSPICE INC – Plaintiff's Motion for Final Approval of Class Settlement and Award of Attorneys' Fees, Costs and Service Awards – HEARING REQUIRED.

Based on the moving papers and supporting evidence, the Court is inclined to GRANT the motion. It appears that proper notice to the settlement class has been given in compliance with the law and as required by the Court's order granting preliminary approval. Having considered the unopposed motion herein and the supporting declarations and evidence, the Court finds that the settlement was entered into good faith, is fair, reasonable and adequate, and satisfies the standards for final approval under California law. (Civil Code §1781; Code Civ. Proc. §382; Cal. Rules of Ct., rule 3.769.) Good cause appearing to the satisfaction of the Court, the proposed settlement and the associated fees and costs are approved as set forth in the motion and supporting papers, as follows:

Fees and costs of Settlement Administrator: \$8,750

Payment to Class Representatives: \$20,000

PAGA allocation to LWDA (75%) and class members (25%): \$50,000

Class Counsel's attorney's fees: \$350,500

Class Counsel's costs: \$44,304.85

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Class Counsel shall submit a revised proposed order incorporating the above revisions for the Court's signature.